

3.

CASE #	CASE NAME	HEARING NAME
CVPS2601596	LEON YUEN VS ROLAND MARKETING LLC	HEARING RE: DEMURRER ON COMPLAINT FOR OTHER EMPLOYMENT (OVER \$35,000) OF ROONEY LEON YUEN

Tentative Ruling:

No joint declaration indicating a proper meet and confer was submitted. The parties failed to comply with the court's order from 6.29.26.

Plaintiff/Cross-Defendant Rooney Leon Yuen's Demurrer to the First Amended Cross-Complaint as to the First and Third Causes of Action SUSTAINED with leave to amend.

Plaintiff/Cross-Defendant Rooney Leon Yuen's Demurrer to the entire First Amended Cross-Complaint for misjoinder SUSTAINED with leave to amend.

Defendant/Cross-Complainants Jack Spencer Roland and Benjamin Ramirez Juarez to file an amended cross-complaint within 30 days.

Case Management Conference continued to 10.09.26. The parties are ordered to file with the Court ten days in advance of the continued CMC a declaration addressing their efforts to meet and confer in accord with Local Rule 3218 and Rules of Court, 3.724. The declaration should specifically address whether the parties have agreed upon a discovery timeline, and if so what that timeline is, and what form of alternative dispute resolution the parties believe is appropriate in this case. Failure to comply will result in sanctions.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2601596	LEON YUEN VS ROLAND MARKETING LLC	HEARING RE: MOTION TO COMPEL RESPONSES TO SPECIAL INTERROGATORIES SET ONE

Tentative Ruling: Code of Civil Procedure sections 2030.290(b) allow the propounding party to file a motion to compel responses to interrogatories if a response has not been received. If responses are untimely, responding party waives objections. (*Id.* at §§ 2030.290(a).) An "attempt to resolve informally" is not required where a party has failed to respond within the statutory time limit; such failure waives all objections to the interrogatories, so there are no "disputed issues" left to resolve. (See *Leach v. Sup.Ct. (Markum)* (1980) 111 Cal.App.3d 902, 906.)

Here, the parties do not dispute that Plaintiff failed to serve timely responses. Plaintiff's only argument in opposition is that he provided responses once he realized the typographical error prevented the initial service attempt. But these responses have objections, which were waived due to the missed deadline. (See Declaration of Rooney Leon Yuen, ¶ 2, Exhibit 1.)

In the opposition, Plaintiff request relief from the waiver of objections. The court, **upon motion**, may relieve that party from waiver if: (1) the party subsequently served a response that is in substantial compliance with the discovery statutes and (2) the party's

failure to timely serve the response due to mistake, inadvertence or excusable neglect. (CCP § 2030.290(a), emphasis added.) Relief from waiver requires a separate motion and Plaintiff's argument is therefore without merit as brought in opposition to the motion to compel.

Regarding sanctions, "the court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (CCP § 2030.290(c).)

Defendants/Cross-Complainants Jack Spencer Roland and Benjamin Ramierz Juarez' Motion to Compel Responses to Special Interrogatories, Set One GRANTED.

Plaintiff/Cross-Defendant Rooney Leon Yuen to provide code-complaint verified responses, without objection, within 30 days.

No sanctions awarded based on Plaintiff's failure to submit responses to the correct email address.

Case Management Conference continued to 10.09.26.